

A.P. Economically Weaker Sections other than Kaps (Reservation of Seats in the Educational Institutions and of appointments or posts in the Public Service under the State) Act, 2019

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State of Andhra Pradesh - Act

A.P. Economically Weaker Sections other than Kaps (Reservation of Seats in the Educational Institutions and of appointments or posts in the Public Service under the State) Act, 2019

ANDHRA PRADESH

India

A.P. Economically Weaker Sections other than Kaps (Reservation of Seats in the Educational Institutions and of appointments or posts in the Public Service under the State) Act, 2019

Act 15 of 2019

Published on 20 February 2019

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A.P. Economically Weaker Sections other than Kaps (Reservation of Seats in the Educational Institutions and of appointments or posts in the Public Service under the State) Act, 2019

(Act

No. 15 of 2019

)

Last Updated 9th July, 2019

The following Act of the Andhra Pradesh Legislature received the assent of the Governor on the 20th February, 2019 and the said assent is hereby first published on the 20th February, 2019 in the Andhra Pradesh Gazette for general information : -

An Act to Provide for the Reservation of Seats in Educational Institutions in the State of Andhra Pradesh and of Appointments or Posts in the Public Services under the State for the Economically Weaker Sections other than Kapus and for matters connected therewith or incidental thereto.

Whereas, the policy of reservation for the social, economic and educational upliftment of the citizens not only for the admissions into educational institutions but also for appointments in the services under the State is being implemented in the State of Andhra Pradesh for a long time and the same was being implemented for the Backward Classes, Schedule Castes and Schedule Tribes;

And Whereas, a large percentage of the population of Andhra Pradesh suffering from social and educational backwardness for many years have started enjoying the fruits of the reservation policy and have been able to improve their lot and attain a higher standard of living,

And Whereas, there was a longstanding demand from the poorest classes of the unreserved categories that due to their economic weakness are unable to compete with the other affluent classes, as a result of which they are gradually becoming socially and educationally backward;

And Whereas, due to the persistent demands from die Economically Weaker Sections of the people an amendment to the Constitution was made under the Constitution (One Hundred and Third Amendment) Act, 2019 by inserting clauses 15(6) and 16(6) in the constitution in order to enable the Economically Weaker Sections (EWSs who are not covered under the existing scheme of reservations for the Scheduled Castes, the Scheduled Tribes and the socially and educationally Backward Classes to receive the benefits on a preferential basis in civil posts and services in the Government and admission in educational institutions;

And Whereas, due to the insertion of Articles 15(6) and 16(6) in the Constitution of India, the Government of Andhra Pradesh is empowered to make provision for 10% reservation to Economically Weaker Sections of Citizens in Civil posts and services in the Government of Andhra Pradesh and admission in Educational Institutions;

And Whereas, the State Government came to a conclusion that there is every need to provide 5% reservation to Economically Weaker Sections (EWS) of Citizens other than Kapus who are not covered under the existing scheme of reservation for Scheduled Castes, Scheduled Tribes and Socially and Educationally Backward Class Citizens in the admission to the Educational Institutions including Private Educational Institutions, whether aided or unaided other than Minority Educational Institutions and in the appointments in the Civil Posts and Services under the State Government.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Seventieth year of the Republic of India as follows: -

1.

Short title, extent and commencement.

(1)

This Act may be called the Andhra Pradesh Economically Weaker Sections other than Kapus (Reservation of Seats in the Educational Institutions and of appointments or posts in the Public Services under the State) Act, 2019.

(2)

It extends to the entire State of Andhra Pradesh.

(3)

It shall come into force on such date as the State Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires:-

(a)

"Economically Weaker Sections" means the classes consisting of persons not included in any other category of reservation, declared as such by the State Government, by notification in the Official Gazette, for the purposes of this Act;

(b)

"Educational Institutions" means

- (i)
any college or other educational institution maintained by the State or receiving aid out of the State funds or affiliated to any university established by law including an university college and a constituent college, other than Minority Educational Institutions; or
- (ii)
any institute or training centre recognized or approved by the Government with the object of preparing, training or guiding its students for any certificate, degree or diploma or other academic distinctions granted or conferred by any university or authority established or approved in this behalf by the Government other than Minority Educational Institutions;
- (c)
"Government" means the State Government of Andhra Pradesh;
- (d)
"Notification" means a notification published in the Andhra Pradesh Gazette and the word "Notified" shall be construed accordingly;
- (e)
"prescribed" means prescribed by rules made under this Act;
- (f)
"Public Service" means public service as defined in the Andhra Pradesh (Regulation of Appointments to Public Services and Rationalization of Staff Pattern and Pay Structure) Act, 1994.

3.
Reservation of Seats in Educational Institutions.

- (1)
The reservation in respect of the annual permitted strength for admission into such educational institutions and courses in the State, as may be prescribed, for Economically Weaker Sections other than Kapus shall be five (5) percent.
- (2)
There shall be one-third reservation for women from the Economically Weaker Sections other than Kapus within five percent of reservation accorded to Economically Weaker Sections of Kapus in respect of the annual permitted strength for admission into such educational institutions and courses in the State, as may be prescribed. The one-third reservation for women shall be Horizontal.

4.
Reservations in appointments or posts in the public services under the State.

- (1)
The reservation of appointments and posts in the public services under the State for the Economically Weaker Sections other than Kapus shall be (5) five percent.
- (2)
There shall be one-third reservation for women from the Economically Weaker Sections other than Kapus within five percent of reservation accorded to Economically Weaker Sections of Kapus in respect of the annual permitted strength for admission into such educational institutions and courses in the State, as may be prescribed. The one-third reservation for women shall be Horizontal.

5.
Power to make Rules.

- (1)
The Government may by notification published in the Andhra Pradesh Gazette make rules for carrying out all or any of the purposes of this Act.
- (2)
(a)
All rules made under this Act shall be published in the Andhra Pradesh Gazette and shall come into force on the day on which they are so published unless it is expressly mentioned to come into force on a particular day.
- (b)
All notifications issued under this Act shall come into force on the day on which they are published, unless it is expressly mentioned to come into force on a particular day.

(3)

Every rule made under this Act shall be laid before each House of the State Legislature immediately if it is in session and if it is not in session, in the next session which follows immediately for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the rule or in the annulment of the rule, the rule shall be with effect from the date of notification of such modification or annulment in the Andhra Pradesh Gazette is notified and or have effect only in such modified form or shall stand annulled. as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

6.

Power to remove difficulties.

- If there is any difficulty/hindrance in giving effect to the provisions of this Act, the Government may, by an order published in the Andhra Pradesh Gazette, make such provisions not inconsistent with the provisions of this Act as appear to them to be necessary or expedient for removing the difficulty/ hindrance:

Provided that no such order shall be made after the expiry of two years from the date of the commencement of this Act.

7.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceedings shall lie against any authority or person for anything done or purported to have been done in good faith in pursuance of the provisions of this Act or the rules made thereunder.

8.

Savings.

(1)

The provisions of any other Act being enacted by the State of Andhra Pradesh for the Reservation of Seats in educational institutions and of appointments or posts in the services under the State for Economically Weaker Sections other than Kapus, insofar as they relate to the reservations, shall, from the date of commencement of this Act, stand repealed.

(2)

All rules, orders, circulars etc., made or, as the case may be, issued before the commencement of this Act by the State Government in relation to reservation of seats in educational institutions and of appointments and posts in the public services under the State for the Economically Weaker Sections other than Kapus shall, insofar they relate to matters for which provision is made in this Act and are not inconsistent therewith, be deemed to have been made or, as the case may be, issued under this Act as if this Act had been in force on the date on which such rules, orders, circulars etc., were made or, as the case may be, issued and shall continue in force unless and until they are superseded by any rule made under this Act.

(3)

Nothing in this Act shall be deemed to have affected any orders made by the Governor in exercise of his powers under the Fifth Schedule of the Constitution of India in respect of the Scheduled Areas.

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